

LAW & MOTION TENTATIVE RULINGS  
DEPARTMENT 5  
April 23, 2026  
8:30 AM/1:30 PM

**11. STUART J. REMINGTON V. BRITTANY J. REMINGTON**

**24FL0061**

On January 23, 2026, Petitioner filed a Request for Order (RFO) seeking spousal support and attorney's fees. He filed a Declaration of Stephen M. Sirota concurrently therewith. Both documents were electronically served on February 2<sup>nd</sup>. However, Petitioner did not file and serve an Income and Expense Declaration.

Respondent filed her Responsive Declaration to Request for Order and her Income and Expense Declaration on April 2<sup>nd</sup>. The court has two Proof of Service forms for the Responsive Declaration, but there is no Proof of Service for her Income and Expense Declaration therefore the court cannot consider it.

Petitioner Stuart Reminton's Statement of Support Calculation was filed and served on April 7<sup>th</sup> along with his Income and Expense Declaration.

"For all hearings involving child, spousal, or domestic partner support, both parties must complete, file, and serve a current Income and Expense Declaration." Cal. Rule Ct. 5.260(1); *See also* Cal. Fam. Code §2100. The party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. El Dorado Sup. Ct. Rule 8.03.01. Here, given that Petitioner failed to file his Income and Expense Declaration, the request for support is denied without.

Likewise, Petitioner was required to include an Income and Expense Declaration with his RFO when requesting attorney's fees. Accordingly, that request is also denied without prejudice.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #11: THE RFO IS DENIED WITHOUT PREJUDICE DUE TO FAILURE TO FILE THE REQUISITE PAPERWORK. PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO***

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**LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.**

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**12. HAYLEY SCHULZ V. TREVOR HARDING**

**23FL0002**

On January 30, 2026, Respondent filed a Request for Order (RFO) seeking custody and visitation orders. All required documents were served by mail on February 7<sup>th</sup>.

Petitioner filed and served a Responsive Declaration to Request for Order on April 8, 2026.

The parties attended Child Custody Recommending Counseling (CCRC) on February 26, 2026. They were unable to reach agreements therefore a report was prepared on April 9, 2026. It was mailed to the parties on April 10<sup>th</sup>.

Respondent is requesting increased parenting time with the children. He asks that the parties attend mediation.

Petitioner opposes the request. She also opposes a request for child support but there is no such request pending before the court. She requests sole legal and sole physical custody of the children and she asks that Respondent have supervised visits. She asks the court to order that missed visits do not result in make-up time and to restrict Respondent's ability to transport the children due to safety concerns. Finally, she asks that she be allowed to claim the children on her taxes each year.

After reviewing the filings as outlined above, the court finds the recommendations contained in the April 9, 2026 CCRC report to be in the best interests of the minors. They are hereby adopted as the orders of the court. Respondent is admonished to abide by the set schedule. If Respondent is going to miss a visit, he must provide Petitioner with at least 72 hours notice prior to the missed visit. Failure to provide notice at least 72 hours ahead of time will result in a missed visit with no make-up visit. If Respondent does give timely notice of the missed visit then the parties shall work together to schedule a make-up visit.

Petitioner's request to claim the children on her taxes is granted.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

**TENTATIVE RULING #12: THE COURT FINDS THE RECOMMENDATIONS CONTAINED IN THE APRIL 9, 2026 CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINORS. THEY ARE HEREBY ADOPTED AS THE ORDERS OF THE COURT. RESPONDENT IS ADMONISHED TO ABIDE BY THE SET SCHEDULE. IF RESPONDENT IS GOING TO MISS A**